

25NNCV02495 25NNCV02495

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Case Number: 25NNCV02495 Hearing Date: September 10, 2026 Dept: P

[TENTATIVE] ORDER DENYING DEFENDANT'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET TWO; GRANTING IN PART DEFENDANT'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION, SET ONE; AND DENYING REQUESTS FOR MONETARY SANCTIONS

I. INTRODUCTION

This is an action for negligence and premises liability arising from a slip and fall injury Plaintiff Lilia Quentero alleges she suffered on property owned by Defendant Jean P. Arslan. Plaintiff alleges she slipped on an unknown substance going down the stairs.

On April 11, 2025, Plaintiff filed her Complaint against Defendant alleging two causes of action for negligence and premises liability.

On May 21, 2026, Defendant filed the instant motions: (1) motion to compel further responses to Request for Production of Documents, Set Two (RFP); and (2) motion to compel further responses to Request for Admissions, Set One (RFA). Both motions seek monetary sanctions. Plaintiff filed oppositions on August 17, 2026, and Defendant filed replies on August 31, 2026.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

(1) An answer to a particular request is evasive or incomplete.

(2) An objection to a particular request is without merit or too general.

Code of Civil Procedure sections 2030.300, subdivision (d), and 2031.310, subdivision (h), provide that the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses unless the Court finds the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust.

III. ANALYSIS

RFA, Set One

A requesting party may move to compel a further response to RFAs where an answer is evasive or incomplete or an objection is without merit or too general. (Code Civ. Proc., § 2033.290, subd. (a).)

Here, Plaintiff initially served objections-only responses on May 11, 2026. Because responses containing only objections need not be verified, the lack of verification did not render those responses a nullity. (Code Civ. Proc., § 2033.240, subd. (a).) After the motion was filed, Plaintiff served substantive supplemental responses on June 1, 2026. Defendant acknowledges receipt of those responses but argues the motion is not moot because the supplemental responses remain unverified.

However, Defendant's request to deem the matters admitted should be denied. Because Plaintiff served responses, this is a motion for further responses under section 2033.290, and matters may be deemed admitted under subdivision (e) only if Plaintiff thereafter fails to obey an order compelling further responses. No such prior order exists here.

Additionally, Plaintiff represents that verification of the supplemental responses will be served before the hearing. (Opposition, p.2.) To the extent verification has been served, the motion to compel further verified responses is moot.

Sanctions

Here, both parties request monetary sanctions. The Court DENIES both requests. The Court finds both parties acted with substantial justification. Defendant sought further responses to the RFAs, albeit with procedural deficiencies and requests for relief that were not warranted, while Plaintiff did not serve substantive responses until after the motion was filed.

RFP, Set Two

Defendant moves to compel further responses to RFP, Set Two, Nos. 1 and 2 – which seek production of responsive documents without objections. No.1 seeks all documents relating to February 26, 2026, site inspection conducted by Phillip Rosescu, and No. 2 seeks all documents relating to reports by Plaintiff's experts. (SS.)

Plaintiff initially served objections-only responses on May 11, 2026. An objections-only response does not result in an automatic waiver of objections merely because it is unverified. Thus, the Court considers whether further responses are warranted.

As to Request Nos. 1 and 2, the Court finds Defendant has not established that further responses without objection are warranted. Plaintiff asserts work-product protection over materials relating to expert investigation and reports. Defendant has not shown that Rosescu or any other expert has been designated to testify or otherwise made the showing necessary to

overcome the asserted work-product protection. Moreover, Request No. 2 broadly seeks all documents relating to reports by Plaintiff's experts without identifying any particular expert, report, subject matter, or time period.

Although Defendant points out in reply that, after the motion was filed, Plaintiff served supplemental responses on June 1, 2026, agreeing to produce photographs from the inspection, a scan diagram, and a demonstrative visualization. However, those supplemental responses were not the responses challenged by the motion. The Court therefore declines to determine their sufficiency on the present briefing. Any dispute concerning the sufficiency or verification of those responses may be addressed separately.

Thus, the motion to compel further Nos. 1 and 2 is DENIED. Given the denial of the motion, both parties' requests for monetary sanctions are also DENIED.

IV. ORDER

The Court DENIES Defendant's motion to compel further responses to RFP, Set Two.

As to RFA, Set One, the Court DENIES requested to deem matters admitted. To the extent Plaintiff has served verifications of June 1, 2026, supplemental responses the motion to compel further verified responses is MOOT. If verification is not served, the motion is GRANTED.

Defendant is to give notice.

Dated: September 10, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT